

		misconception and the justifiability of lack of determination of the correct law Although an honest mistake of law is a valid ground for relief where a problem is complex and debatable, ignorance of the law coupled with negligence in ascertaining it will certainly sustain a finding denying relief.” (A & S Air Conditioning v. John J. Moore Co. (1960) 184 Cal.App.2d 617, 620.) Here, Defendant states in her supporting declaration that on or about October 18, 2024, she filed a Notice of Stay in connection with pending Fee Arbitration proceedings. (Kazerooni Decl., ¶ 4, Ex. A.) Defendant, representing herself in this matter, did not file an Answer because she mistakenly believed that the Notice of Stay eliminated the need for an Answer. (Kazerooni Decl., ¶ 4.) On January 30, 2025, Defendant looked at the Docket and realized that on or about January 22, 2025, Plaintiff filed an Application for Default Judgment. (Kazerooni Decl., ¶ 5.) Thus, Defendant did not learn of the requirement to file an Answer until January 30, 2025, when she became aware that the default judgment had been entered. (Kazerooni Decl., ¶ 6.) Upon learning of the error, Defendant promptly filed an Answer on January 30, 2025, but it was rejected by the Court since a default judgment had already been entered against Defendant. (Kazerooni Decl., ¶ 7, Ex. B.) These facts adequately establish excusable neglect and mistake of law, as well as Defendant’s diligent conduct upon learning of her error. Plaintiff has not filed an opposition. “The failure to serve and file a written opposition may be construed by the court as an admission that the motion is meritorious, and the court may grant the motion without a hearing on the merits.” (Rules of Court, Rule 3.1342(b); see also DuPont Merck Pharmaceutical Co. v. Sup. Ct. (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”].) With respect to the requested stay, Defendant provides no legal authority or analysis to support the requested stay. The motion is GRANTED in part as to the request to vacate the default and default judgment and DENIED in part as to the requested stay.
16	22-01276965 <i>T-Mobile West, LLC vs. Newport Towers Homeowners Association</i>	1) Joinder 2) Motion for Bifurcation
17	21-01183751 <i>Vrooman vs. Macy's Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendants Macy’s Inc. and Benefit Cosmetics’ Motion for Summary Judgment is GRANTED. Negligence requires duty, breach of the duty, causation, and damages. (<i>County of Santa Clara v. Atlantic Richfield Co.</i> (2006) 137 Cal.App.4th 292, 318.) “The defendant has shown that the plaintiff cannot establish at least one element of the cause of action by showing that the plaintiff

		does not possess, and cannot reasonably obtain, needed evidence” (<i>Id.</i> at 854.) Defendant has satisfied its burden of proving Plaintiffs cannot establish causation. Plaintiff’s prior medical records reveal voluminous preexisting complaint including mental and mobility issues. (Galvin Decl., Ex. E.) She needed a walker and is noted to be forgetful and have unsteady gait and generalized weakness. (Galvin Decl., Ex. E.) Plaintiff is noted to have significant dementia the less than 3 weeks after the fall and stated she is extraordinarily active. (Galvin Decl., Ex. G.) Plaintiff fell again in April 2019 attempting to stand from her toilet injuring her left ankle and hitting her head. (Galvin Decl., Ex. F.) Finally, the death certificate lists only cardiopulmonary arrest and senile degeneration of the brain as the causes of death. (Galvin Decl., Ex. H.) “The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony.” (<i>Jones v. Ortho Pharmaceutical Corp.</i> (1985) 163 Cal.App.3d 396, 402 (cleaned up).) Plaintiffs have failed to provide sufficient evidence to support causation. Dr. Csuka’s statement that the fall and death are timely connected is insufficient to show there is a reasonable medical probability the events are causally linked. Thus, the burden shifts to Plaintiffs to prove there is an issue of material fact. However, Plaintiffs have not opposed the motion and, thus, have not met their burden. Accordingly, Defendants’ Motion for Summary Judgment is granted.
18	24-01416662 <i>Fallor vs. Capistrano Beach Care Center, LLC</i>	Motion to Appear Pro Hac Vice The application of attorney Thomas W. Arbon to appear pro hac vice as counsel for Plaintiff Beulah Fallor in this matter is hereby GRANTED pursuant to California Rules of Court, rule 9.40.